

Partnership Agreement for Gradiate and/or Nengovhela Application Assistance

This Agreement is made and entered into on the 23rd of June, 2025, by and between:

- Nicoroy L. Zwane, and
- Nengovhela Thandululo

(Collectively referred to as “the Partners”)

1. Project Overview

The Partners hereby agree to collaborate equally on the development, management, and launch of Gradiate and/or Nengovhela Application Assistance, a personalized student success platform that helps learners and graduates discover academic and career opportunities based on their performance, goals, and needs.

2. Purpose of the Project

Gradiate and/or Nengovhela Application Assistance exist to:

- Empower students with clarity on what they qualify for.
- Centralize access to university programs, bursaries, and career opportunities.
- Support transitions from school to university or employment.
- Handle student data responsibly, ethically, and securely.

3. Partnership Structure

- The partnership shall be a 50/50 collaboration between Nicoroy Zwane and Nengovhela Thandululo.
- All major decisions will be made jointly unless otherwise agreed upon in writing.

4. Roles and Responsibilities

The Partners agree to:

- Collaboratively plan and execute all aspects of the Gradiate and/or Nengovhela Application Assistance project(s), including design, development, outreach, and marketing.
- Share responsibilities such as:
 - Platform development and testing
 - Stakeholder engagement (schools, bursary organizations, employers)
 - Content and user experience design
 - Student support features
 - Branding and public communications

5. Intellectual Property (IP)

- All work created under the Gradiate and/or Nengovhela Application Assistance project(s), including code, design, written content, data structures, and branding, is jointly owned 50/50 by the Partners.
 - No Partner may claim sole ownership or license the IP without written mutual consent.
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6. Profit and Revenue Sharing

- If and when Gradiate and/or Nengovhela Application Assistance generates revenue, profits will be shared equally: 50% to Nicoroy Zwane and 50% to Nengovhela Thandululo, unless amended in writing by both parties.

7. Data and Ethics

- Both Partners agree to handle user data responsibly, transparently, and in compliance with local privacy laws.
- No Partner may misuse, sell, or share user data without informed user consent and mutual partner agreement.

8. Decision-Making and Disputes

- All decisions shall be made through consensus between both Partners.
- In the event of disagreement, the Partners will attempt to resolve the dispute through open discussion or, if necessary, mediated dialogue with a neutral third party.

9. Exit Clause

- If a Partner wishes to leave the project, they must:
 - Provide 30 days written notice
 - Participate in knowledge and IP transfer to ensure the continuity of the project
 - Negotiate a fair settlement on ownership, rights, and revenue (if any has been earned)

No Partner may assign their stake to a third party without written consent from the other.

10. Amendments

This Agreement may be amended only in writing, signed by both Partners.

11. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the Republic of South Africa.

12. Signatures

Partner 1:

Name: Nicoroy L. Zwane

Signature: Nicoroy L. Zwane

Date: 23 June 2025

Partner 2:

Name: Nengovhela Thandululo

Signature: _____

Date: _____